ILLEGAL IMMIGRANTS

THE NEW AMERICAN NIGHTMARE

Though some Indians are at immediate risk from the new Trump administration's plan to expedite deportation of illegal immigrants, other such entrants are protected, for now, by a lengthy judicial process and a well-oiled support system

By **JUMANA SHAH**



FOR A NEW LIFE
US border patrol agents with Indian illegal immigrants at Dulzura, California, near the US-Mexico border

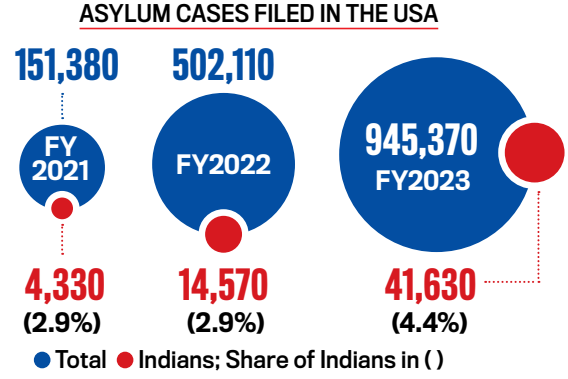
Even as H-1B beneficiaries and aspirants anxiously await clarity on their status after Donald Trump takes oath as president of the United States on January 20, the threat to an estimated 725,000 illegal immigrants from India looms ever closer. Trump has vowed that he will carry out a mass deportation of all illegal immigrants on Day 1 of his presidency, the like of which America has never seen before. There are an estimated 11 million illegal immigrants in the US, of which those from Mexico alone form close to 50 per cent, followed by El Salvador and India with seven per cent each. In his first term between 2017 and 2021, Trump ensured the annual average deportation of 200,000 illegal immigrants. Even the Biden administration averaged a matching 200,000 in his final two years.

In his second term, Trump policy-makers intend to step it up to one million in the first year alone and even higher figures later. Indians are likely to form a substantial number of them. US Homeland Security data show that 90,415 Indians were caught between October 2023 and September 2024 trying to enter the US without proper documents. They were mostly from Gujarat, Punjab, Haryana and some from Uttar Pradesh. However, it is to be seen how rapidly the new administration deports them as there is a lengthy legal process before they can be sent back.

Most of these non-citizens are sent to detention centres and face adversarial administration proceedings before immigration judges. There needs to be a formal hearing process where those charged with illegal entry are entitled to legal counsel, which could take months. Only after the judge passes a verdict can US Immigration and Custom Enforcement (ICE) officials proceed with their deportation. Before they can be deported, the concerned country is notified and must acknowledge them as their citizens. Last year, the Biden administration deported 1,500 Indians, using charter flights. The American government bears the cost of the flights or

HOPING FOR ASYLUM

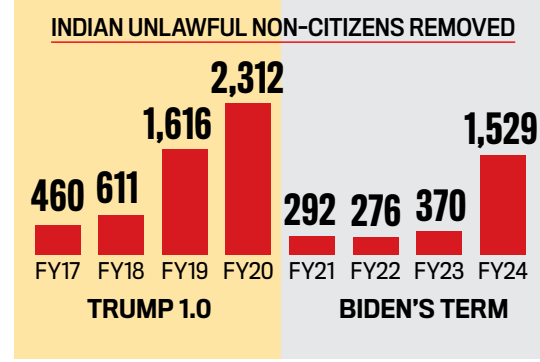
The burden of asylum-seekers from India has only grown in America



Note: The American financial year is from Oct. 1-Sept. 30
Source: Office of Homeland Security

ALL IN VAIN

The number of illegal Indian immigrants deported peaked at the end of Trump 1.0



Source: US Immigrations and Customs Enforcement